

Shiv Murti Yadav v. State of U.P. & 6 Others

Allahabad High Court · Single Judge · 19 August 2014 · Criminal Revision No. 2303 of 2014 · **Revision dismissed**

HEADNOTE

Not a Supply Code case — a criminal revision against dismissal of a Section 156(3) Cr.P.C. application seeking registration and investigation of an FIR over an alleged forged consent letter used to fell a jointly-owned mahua tree on agricultural land, with allegations of threats by co-sharers. No electricity-related content appears anywhere in the order.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::s156-3-crpc-tree-felling-dispute

Criminal revision against dismissal of a s.156(3) Cr.P.C. application over a forged-consent tree-felling dispute between land co-sharers — no Supply Code nexus

HOLDING

The revisional court's jurisdiction is narrower than appellate jurisdiction, warranting interference only for gross error, non-compliance with law, unsupported findings, or perverse exercise of discretion; finding none of these, and noting the proper remedy for police inaction on an FIR is a complaint before the Magistrate (not a writ or revision), the revision was dismissed. ¶ paras 5-9

FLAG Recorded for completeness of the source corpus only; no jurisprudential content relevant to the Supply Code.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Aleque Padamsee & Others v. Union of India & Others</i> (2007) 6 SCC 171 [139734870] Supreme Court	Where the police fail to act on information about a cognizable offence, the remedy is to file a complaint before the Magistrate under s.190/200 Cr.P.C., not a writ petition seeking a direction to register an FIR.	Applied to hold the revisionist had no separate ground for interference given this remedy.	Court	Followed